

**TENTATIVE RULINGS
DEPARTMENT C11 - LAW AND MOTION CALENDAR**

Judge Jonathan Fish

May 26, 2026

LAW AND MOTION IS HEARD ON MONDAYS AT 1:30 P.M.

Court Reporters: Official court reporters (i.e., court reporters employed by the Court) are **NOT** typically provided for law and motion matters in this Department. If a party desires a record of a law and motion proceeding, it must provide a court reporter. Parties must comply with the Court's policy on the use of privately-retained court reporters, which can be found at:

- [Civil Court Reporter Pooling](#);
- Please see the Court's website at [Court Reporter Interpreter Services](#) for additional information regarding the availability of court reporters.

Tentative Rulings: The Court endeavors to post tentative rulings on the Court's website by 5 p.m. on the preceding Friday. Do NOT call the Department for a tentative ruling if none is posted. Tentative rulings may not be posted on every case – or may be posted the morning of the hearing – due to the Court's other commitments or the nature of a particular motion. **The Court will NOT entertain a request for continuance or the filing of further documents once a tentative ruling has been posted.**

Submitting on tentative rulings: If **all** counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5211. Please do not call the Department unless **all** parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the Court's signature, if appropriate under Cal. R. Ct. 3.1312.

Non-appearances: If no one appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

Appearances: Remote and In-Person Proceedings. Parties are referred to the Court's "Appearance Procedures and Information – Civil Unlimited and Complex" and "Guidelines for Remote Appearances" available on the Public Website.

#	Case Name	
1	Kennedy vs. Samaha 2025-01507932	1. Demurrer to Complaint The demurrer of defendant Youssef Merhi, erroneously sued and served as Youseff Mehri, to plaintiff Daniel Kennedy’s complaint is sustained with 21 days leave to amend. Plaintiff has now paid his first appearance fee. [ROA #40.] He appeared at the prior hearing without objection and was properly served with notice of this continued hearing. No opposition to the demurrer has been filed. It appears that Plaintiff may have served a first amended complaint (“FAC”) as Defendant attempted to file a demurrer to an amended complaint. [ROA #30.] Failure to oppose the demurrer may be construed as having abandoned the claims. <i>See Herzberg v. County of Plumas</i> (2005) 133 Cal. App. 4th 1, 20 (“Plaintiffs did not oppose the County's demurrer to this portion of their seventh cause of action and have submitted no argument on the issue in their briefs on appeal. Accordingly, we deem plaintiffs to have abandoned the issue.”); <i>Quantum Cooking Concepts, Inc. v. LV Associates, Inc.</i> (2011) 197 Cal.App.4th 927, 934 (trial court was justified in denying post-trial motions for failure to provide adequate memorandum; “Rule 3.1113 rests on a policy-based allocation of resources, preventing the trial court from being cast as a tacit advocate for the moving party’s theories by freeing it from any obligation to comb the record and the law for factual and legal support that a party has failed to identify or provide.”). Additionally, the court may construe the absence of a memorandum as waiver of all grounds not supported. CRC 3.1113(a). Further, Plaintiff’s service of a FAC – analogous to a failed attempt to file a FAC in response to a demurrer – is an implicit concession as to the merits of the demurrer. Accordingly, the demurrer is sustained. Defendant to give notice.

		2. Case Management Conference – cont. to 7/6/2026 at 9:00 a.m. 3. Order to Show Cause – cont. to 7/6/2026 at 9:00 a.m.
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